

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*.

DOCKET NO. 22-20

Served: January 6, 2023

ORDER OF: Linda S. CROVELLA, *Administrative Law Judge*.

ORDER DENYING JOINT MOTION TO AMEND SCHEDULING ORDER

On September 22, 2022, the parties filed a joint report and proposed scheduling and discovery order. On October 6, 2022, a Scheduling Order issued, which largely followed that proposed by the parties but added briefing due dates to assist the parties with scheduling.

On November 29, 2022, Complainant MSRF, Inc. moved for a 30-day extension of the deadline to complete the deposition of fact witnesses from December 16, 2022, to January 16, 2023 (“Motion for EOT”), on the basis that the number of emails responsive to each parties’ requests were significantly higher (Respondent’s) or lower (Complainant’s) than expected, and with the holiday season, once the parameters were corrected and the emails produced, more time would be needed to review them and prepare for depositions. Motion for EOT at 1. Complainant asserted that Respondent HMM Co. Ltd consented to the motion. *Id.* On November 30, 2022, Complainant’s Motion for EOT was granted for good cause. The parties were reminded that they should plan to meet all other deadlines in the scheduling order and were cautioned that further extension requests, even if agreed to between the parties, may not be granted. Order Granting EOT at 1.

In their current joint motion requesting extensions of time for discovery (“Joint Motion to Amend”), filed on January 4, 2023, shortly before the extended deadline to complete depositions of fact witnesses, the parties propose amending the remaining discovery deadlines by two months without addressing briefing deadlines or how this extension would impact the issuance of an initial decision by August 19, 2023, one year from the Notice of Filing of Complaint. Joint Motion to Amend at 1-2.

Currently, the remaining discovery and briefing schedule are as follows:

January 11, 2023	Last Day to Serve Interrogatories, Requests for Admission, and Final RFPs
January 16, 2023	Complete Deposition of Fact Witnesses
January 27, 2023	Respondent's Notice of Expert Testimony
February 10, 2023	Close of Discovery
March 10, 2023	Complainant's brief, proposed findings of fact, and appendix
April 7, 2023	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 21, 2023	Complainant's reply brief and responses to proposed findings of fact

The parties now propose closing discovery on April 7, 2023, two months after the above schedule which was adopted from their joint status report and proposed discovery schedule and modified by Complainant's Motion for an EOT. The proposed close of discovery will fall after the Complainant's brief is due and on the day Respondent's opposition brief is currently due. The parties propose nothing after the close of discovery.

The Joint Motion to Amend largely reiterates the reasons set forth in Complainant's Motion for EOT, indicating that the parties have been surprised by the volume of documents they are identifying as responsive, and are still reviewing "for privileged materials." Because it is unclear what the status is of their responses to each other's requests for production of documents and ESI, and because the parties have not addressed the briefing schedule, it would be helpful for the parties to provide a detailed joint status report and a revised proposed amendment to the scheduling order that includes a briefing schedule and allows for sufficient time to issue an initial decision.

Good cause not having been stated, it is hereby ordered that the joint motion to amend the scheduling order is **DENIED**.

It is **FURTHER ORDERED** that the parties submit a joint status report and revised proposed amendment to the scheduling order by January 13, 2023.



Linda S. Harris Crovella
Administrative Law Judge